

COMMITTEE ON HEALTH AND HUMAN SERVICES
SENATE AMENDMENTS TO H.B. 2086
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 36-681, Arizona Revised Statutes, is amended to
3 read:

4 36-681. Governmental entities; masks; prohibition; definition

5 A. A governmental entity may not impose ON any RESIDENT OF THIS
6 STATE A requirement to wear a mask or face covering ~~anywhere on the~~
7 ~~governmental entity's premises~~, except where long-standing workplace
8 safety and infection control measures that are unrelated to COVID-19 may
9 be required.

10 ~~B. The requirements of this section do not apply to a special~~
11 ~~health care district established pursuant to title 48, chapter 31.~~

12 ~~C.~~ B. For the purposes of this section, "governmental entity"
13 means this state and any political subdivision of this state, including
14 the judiciary, that receives and uses state tax revenues.

15 Sec. 2. Section 36-685, Arizona Revised Statutes, is amended to
16 read:

17 36-685. Vaccinations; prohibition; definition

18 A. ~~Any~~ NOTWITHSTANDING ANY OTHER LAW REQUIRING VACCINATIONS IN THIS
19 TITLE OR TITLE 15 OR THE RULES ADOPTED PURSUANT TO THOSE TITLES, A
20 government entity may not require a resident of this state to receive a
21 vaccination ~~for COVID-19 or any variant of COVID-19~~ FOR ANY DISEASE OR
22 VIRUS.

23 ~~B. Subsection A of this section does not apply to a health care~~
24 ~~institution that is owned or operated by a government entity in this~~
25 ~~state.~~

26 ~~C.~~ B. For the purposes of this section, "government entity" means
27 this state and any political subdivision of this state that receives and
28 uses tax revenues.

1 <<Sec. 3. Heading change
2 The chapter heading of title 44, chapter 38, Arizona Revised
3 Statutes, is changed from "BUSINESSES EXEMPT FROM MASK MANDATE" to
4 "BUSINESSES - MASK AND VACCINATION MANDATES".>>
5 <<Sec. 4. Title 44, chapter 38, article 1, Arizona Revised
6 Statutes, is amended by adding section 44-7952, to read:
7 44-7952. Businesses; requirement of mask or vaccination
8 prohibited; exception
9 A BUSINESS OPERATING IN THIS STATE MAY NOT REQUIRE THAT A PERSON DO
10 EITHER OF THE FOLLOWING TO ENTER THE BUSINESS'S BUILDING OR PREMISES OR TO
11 BE EMPLOYED:
12 1. WEAR A MASK OR OTHER FACE COVERING, EXCEPT WHERE LONG-STANDING
13 WORKPLACE SAFETY AND INFECTION CONTROL MEASURES MAY BE REQUIRED.
14 2. RECEIVE ANY TYPE OF VACCINATION.>>

15 Enroll and engross to conform
16 Amend title to conform

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